

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Team # 3	CCRB Case #: 201400419	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/21/2013 4:30 PM	Location of Incident: The intersection of East 217th Street and Bronxwood Avenue and the 47th Precinct stationhouse	18 Mo. SOL 2/21/2015	Precinct: 47		
Date/Time CV Reported Wed, 01/15/2014 9:43 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/15/2014 9:43 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Charles Gove	14285	939968	047 PCT
2. POM Michael Whelan	27703	948440	047 PCT
3. Officers			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Adam Drucker	26507	948328	047 PCT
2. POM Donald Ford	03893	944568	047 PCT
3. SDS Todd Ragni	02004	898340	INT OAS
4. POM Joseph Timarchi	27993	937630	047 PCT
5. POM Randy Kyrk	25350	948372	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Whelan	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Charles Gove	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Charles Gove stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Michael Whelan	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan questioned § 87(2)(b)	C . Substantiated
D . POM Michael Whelan	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan frisked § 87(2)(b)	D . Substantiated
E . POM Michael Whelan	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan searched § 87(2)(b)	E . Substantiated
F . POM Michael Whelan	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated

Officer(s)	Allegation	Investigator Recommendation
G . POM Charles Gove	Abuse: At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Charles Gove searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Exonerated
H . Officers	Abuse: Inside of the 47th Precinct stationhouse, officers questioned § 87(2)(b)	H . Officer(s) Unidentified
I . Officers	Abuse: In the vicinity of the 47th Precinct Stationhouse, officers damaged § 87(2)(b)'s property.	I . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

§ 87(2)(b) filed this complaint on January 15, 2014, five months after the incident date. On August 21, 2013, at approximately 4:30 p.m., § 87(2)(b) was driving his friend's § 87(2)(b) § 87(2)(b) vehicle, with § 87(2)(b) in the passenger seat, and § 87(2)(b) § 87(2)(b) year-old son and § 87(2)(b) § 87(2)(b)-year-old daughter in the back seat. § 87(2)(b) denied committing any vehicle infractions, yet his vehicle was allegedly stopped by PO Whelan and PO Gove for failing to stop at a stop sign (**Allegations A and B**). During the vehicle stop, PO Whelan allegedly questioned § 87(2)(b) of his whereabouts, specifically as they contradicted the information provided to him by another officer, and PO Whelan asked § 87(2)(b) if he had "anything on him," and if he, had any weapons, (**Allegation C**). PO Whelan then allegedly asked § 87(2)(b) to step out of the vehicle, frisked and searched his pockets, revealing what § 87(2)(b) claimed to be a small bag of vitamin C pills that the officers believed to be a controlled substance (MDMA) (**Allegations D and E**). PO Whelan and PO Gove then allegedly searched § 87(2)(b) vehicle (**Allegations F and G**). Afterwards, PO Whelan drove § 87(2)(b) vehicle to the 47th Precinct stationhouse, and § 87(2)(b) was taken into the 124 room and was allegedly questioned by two officers (**Allegation H**).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) was arrested, without a Desk Appearance Ticket issued, therefore this case was unsuitable for mediation.
- Neither § 87(2)(b) nor § 87(2)(b) filed a notice of claim in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by, or involving § 87(2)(b) (encl. 2F) or § 87(2)(b) § 87(2)(b) (encl. 2G).
- PO Charles Gove has been a member of the service for nine years and there are three substantiated CCRB allegations against him: in CCRB case #201204995, the CCRB substantiated an allegation of threat of force, physical force, and discourteous action. All three allegations resulted in non-disciplinary action by the NYPD. § 87(2)(g)
- PO Whelan has been a member of the service for five years and there are no substantiated CCRB allegations against him. § 87(2)(g)

Civilian Statements

§ 87(2)(b) (encl. 4A-E)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a § 87(2)(b) black man with black hair and brown eyes.

§ 87(2)(b) appeared at the CCRB on January 29, 2014, and provided the following statement.

- Prior to being stopped, § 87(2)(b) saw § 87(2)(b) on the steps of his apartment building, and beeped his horn at him. From 15-20 feet away from the vehicle, § 87(2)(b) waved, and § 87(2)(b) continued driving. He denied any additional interaction with § 87(2)(b).
- § 87(2)(b) was stopped by officers, determined by investigation to be PO Gove and PO Whelan in a marked SUV. § 87(2)(b) denied failing to stop at a stop sign, although he did pass one on his route.
- PO Whelan began questioning § 87(2)(b) about where he was coming from, and when § 87(2)(b) stated that he was coming from White Plains Road, PO Whelan responded, "If you're coming why did you come through 215th to Barnes Avenue?" Once § 87(2)(b) explained, PO Whelan asked where he was going, and then both officers returned to their SUV briefly.
- "Where are you coming from?" § 87(2)(b) responded, "I just told you, I'm coming from White Plains Road." PO1 responded, "It's just funny, if you are coming from White Plains Road, I don't understand why you would cut through all these blocks in order to get to 222nd." § 87(2)(b) said that he didn't feel like taking White Plains Road. PO1 then asked § 87(2)(b) "Do you have anything on you?" § 87(2)(b) replied, "No, I don't have anything on me." PO1 then asked, "Do you have any weapons?" and asked § 87(2)(b) to step out of his vehicle.
- PO Whelan then frisked § 87(2)(b)'s waistband area, shoulders, chest area, arms, and patted down § 87(2)(b)'s front pants pockets.
- PO Whelan then entered § 87(2)(b)'s front fifth pocket, and pulled out a plastic bag of what § 87(2)(b) identified as Vitamin C pills. § 87(2)(b) told the officers that the pills were vitamin C pills, and the officers stated that they were going to have to check that.
- PO Whelan then asked § 87(2)(b) and her children to step out of the vehicle, and searched § 87(2)(b)'s trunk, the back seat and front driver's and passenger's side seats, looking into the side panels of the vehicle, under the steering wheel, near the gas pedal, inside the creases in the driver's seat, the hand rests, and the glove compartment.
- § 87(2)(b) and her children were driven in her own vehicle to the 47th Precinct stationhouse by PO Whelan.

Victim: § 87(2)(b) (encl. 5A-B)

- § 87(2)(b) denied that § 87(2)(b) had any interaction with § 87(2)(b) or anyone else while she was in the vehicle with him. She stated that § 87(2)(b) did not beep his horn at any individual as her car horn is inoperable.
- § 87(2)(b) stated that § 87(2)(b) did fully stop at the stop sign that they passed directly before they were pulled over, and § 87(2)(b) did not commit any other vehicle infractions.
- PO Whelan approached the vehicle and spoke to § 87(2)(b) about whether he failed to stop at the stop sign, and § 87(2)(b) became aggravated and told § 87(2)(b) to be quiet, when she apologized to PO Whelan if they did not stop fully at a stop sign.

- PO Whelan asked § 87(2)(b) to step out of the vehicle, and brought him to the rear of the vehicle. § 87(2)(b) could not see PO Whelan searching § 87(2)(b). But saw that PO Whelan recovered what she believed to be § 87(2)(b)'s Vitamin C pills.
- PO Whelan searched the trunk of the vehicle, the back seat, front seat, the glove compartment and center console of the vehicle. PO Whelan also grabbed § 87(2)(b) purse and asked her if there was anything inside. § 87(2)(b) stated that there was nothing inside her purse. PO1 then stated, "If I find something inside here, you're going to be arrested." § 87(2)(b) stated again that there was nothing in her purse, and then PO1 searched her purse, finding nothing.
- § 87(2)(b) stated that the vehicle did not smell of marijuana, and being the sole owner of the vehicle, she knew that no one had ever smoked marijuana in that vehicle. She also stated that § 87(2)(b) did not smell of marijuana that day.
- § 87(2)(b) was taken to the stationhouse, and into a room where she was questioned by a few officers, who were asking § 87(2)(b) about certain individuals that she did not know. After some questioning, § 87(2)(b) was released without a summons or arrest. § 87(2)(b) could not provide descriptions of the officers that questioned her.

NYPD Statements:

Subject Officer: PO MICHAEL WHELAN (encl. D-F)

- A member of the Intel unit, who PO Whelan could not name, reported over a point to point radio that an individual, believed to be the subject of the search warrant had left the Search Warrant Location in a Mercedes sedan.
- The description provided matched § 87(2)(b)'s physical description and stated that a passenger was inside the vehicle as well.
- PO Whelan located the sedan, and followed it with PO Gove for approximately one block. PO Whelan finally stopped the vehicle after § 87(2)(b) failed to come to a full stop at a stop sign.
- PO Whelan approached the driver's side of the vehicle, while PO Gove approached the passenger's side, and asked § 87(2)(b) where he was coming from. § 87(2)(b) stated that he was coming from Carpenter Avenue and 216th Street.
- § 87(2)(b) became irate, cursing at the officers, saying "fuck you," and other obscene statements. PO Whelan told § 87(2)(b) to "calm down," and § 87(2)(b) was not responding to PO Whelan's statements. Because of this non-compliance, § 87(2)(b)'s hostile behavior, and the fact that there were children in the back seat of the vehicle, PO Whelan instructed § 87(2)(b) to step out of the vehicle, with which § 87(2)(b) complied.
- PO Whelan then instructed § 87(2)(b) to go to the back of the vehicle, where he intended to talk § 87(2)(b) down. At the back of § 87(2)(b)'s vehicle, PO Whelan noticed marijuana packaged in clear plastic bag bulging out of his front-right fifth pocket, which is a small pocket just above the larger front pants pocket.
- Upon seeing the marijuana, in plainview, § 87(2)(b) was immediately placed in handcuffs. PO Whelan then removed a quantity of marijuana from § 87(2)(b)'s pocket.
- PO Whelan did not recall searching the vehicle, searching § 87(2)(b) or searching § 87(2)(b) purse, he did not recall PO Gove taking these actions. PO Whelan did not recall any of the actions that PO Gove took during this incident.
- PO Whelan drove the vehicle with the female and child to the stationhouse, and escorted her to the 124 room. PO Whelan then returned to the search warrant location to assist

with the search warrant execution. He was not aware of which officers, if any, interacted with § 87(2)(b) at the stationhouse.

Subject Officer: PO CHARLES GOVE (encl. 7C-D)

- § 87(2)(e), § 87(2)(f) [REDACTED]
- § 87(2)(e), § 87(2)(f) [REDACTED]
- § 87(2)(e), § 87(2)(f) [REDACTED]
- § 87(2)(e), § 87(2)(f) [REDACTED]
[REDACTED] There were no additional factors that led him and PO Whelan to stop § 87(2)(b) [REDACTED] s vehicle. PO Gove did not recall seeing § 87(2)(b) [REDACTED] commit any vehicle infractions, including failing to stop at a stop sign, even after being presented with the arrest report and UF-61.
- PO Gove stated that he was under the impression, by the information provided to him and the other two officers, that there was probable cause to arrest § 87(2)(b) [REDACTED] prior to the vehicle stop.
- PO Gove and PO Whelan approached the vehicle and one of them, PO Gove is unsure who, directed § 87(2)(b) [REDACTED] to exit the vehicle. § 87(2)(b) [REDACTED] complied and was asked by an officer if he had any weapons on him. § 87(2)(b) [REDACTED] stated that he did not, and then was placed in handcuffs.
- Incident to the arrest, § 87(2)(b) [REDACTED] s pockets were searched, revealing a quantity of marijuana and a quantity of white pills. PO Gove did not recall how or if the evidence was packaged, the quantity of marijuana or white pills that was found or the state of the marijuana (burnt or unburnt).
- PO Gove searched the reachable, lungeable areas of § 87(2)(b) [REDACTED] s vehicle, PO Gove was unsure if any other officers assisted him in searching the vehicle. Under the driver's seat, underneath his seat, between the driver's seat and center console, the visor. PO Gove did not recall searching the trunk of the vehicle, and did not recall any other officer searching the trunk of the vehicle or any closed compartments or containers.
- PO Gove did not recall any purses being located in the vehicle, and did not recall himself or any officer searching any purses at the scene. PO Gove stated that the vehicle was searched on scene because they were taking the vehicle to the stationhouse. PO Gove stated that the vehicle was driven to the stationhouse by PO Whelan who drove the vehicle with § 87(2)(b) [REDACTED]
- PO Gove is unsure if the vehicle was vouchered, and was unsure if any additional, more thorough searches of that vehicle were conducted.
- After this incident, PO Gove received a radio call for a description and direction of flight of § 87(2)(b) [REDACTED] the subject of the Search Warrant, as he left the search warrant location during the execution of the search warrant. PO Gove and either PO3, or PO Whelan spotted § 87(2)(b) [REDACTED] apprehended him, and brought him into their van.
- PO Gove is unsure what happened to § 87(2)(b) [REDACTED] after she was taken to the stationhouse, or if she was questioned.

Witness Officer: PO JOSEPH TIMARCHI (encl. 10C-D)

- Assigned as the Field Intelligence officer, PO Timarchi was stationed outside of § 87(2)(b) in an unmarked vehicle.
- His responsibilities consist of reporting over a point to point radio when any individuals enter or leave the Search Warrant location. The purpose of his assignment is to assure that the execution team is kept informed of how many people they can expect to be inside of the location before they execute the warrant.
- PO Timarchi stated that he simply reports his observations, giving a physical description of the individuals and the direction they are heading. PO Timarchi stated that he does not direct any officers to stop or apprehend any civilians that leave the location, and did not recall any supervisors directing anyone to stop or arrest anyone that left the location.

Findings and Recommendations

Explanation of Subject Officer Identification

PO Whelan and PO Gove both admit to stopping § 87(2)(b)'s vehicle, and provided somewhat differing justifications for the vehicle stop. § 87(2)(g)

§ 87(2)(b). PO Whelan admitted to being the only officer to speak to § 87(2)(b) on scene and searching § 87(2)(b). PO Gove and PO Whelan admitted to collectively searching § 87(2)(b) vehicle. § 87(2)(g)

Although § 87(2)(b) and § 87(2)(b) place additional officers at the scene, there are no allegations made against those officers. PO Whelan claimed that only himself and PO Gove were present, and PO Gove stated that he did not recall the identity of a third officer that was present. According to the 47th Precinct Roll Call, PO Drucker was assigned to the same van as PO Whelan and PO Gove. However, PO Drucker stated that he was not present for this incident, as he was also the arresting officer for the search warrant, and the language of the arrest report indicates that he was informed of this arrest, instead of actually witnessing it. The investigation determined that PO Ford was also a member of the conditions team that PO Gove and PO Whelan were assigned to. However, he stated that he was present at the Search Warrant location as building security during this incident. § 87(2)(g)

§ 87(2)(b) could not provide any descriptions or identities of the officers that questioned her at the stationhouse. § 87(2)(g)

§ 87(2)(b). The likely officers, § 87(2)(b) and § 87(2)(b)'s arresting officer, PO Drucker, and the officer that requested the search warrant, PO Kyrk, were interviewed in regards to this allegation, and have no recollection of interacting with § 87(2)(b). § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Abuse of Authority- At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B- Abuse of Authority- At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Charles Gove stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g) According to § 87(2)(b) he was picked up by § 87(2)(b) at 221st Street and Carpenter Avenue, passed § 87(2)(b) on the steps of his residence, and from 15-20 feet away honked his horn at § 87(2)(b). According to § 87(2)(b) § 87(2)(b) had no contact whatsoever with § 87(2)(b) or any other individual while she was inside the vehicle with him, and stated that her horn is inoperable. PO Whelan and PO Gove were consistent that PO Timarchi reported to them that § 87(2)(b) left § 87(2)(b)'s residence. PO Gove and PO Whelan were assigned to assist with the execution of the Search Warrant of § 87(2)(b)'s residence, § 87(2)(g)

§ 87(2)(g) According to PO Whelan, upon receiving a transmission that § 87(2)(b) fit the description of the target of the Search Warrant, they were asked to follow § 87(2)(b)'s vehicle, and only stopped § 87(2)(b) upon failing to stop at a stop sign. According to PO Gove, the transmission relayed that § 87(2)(b) entered and left § 87(2)(b), and he and PO Whelan were directed to arrest § 87(2)(b). PO Timarchi stated that he simply reports observations, without directives, in order to keep the team informed of who they can expect to be inside of the apartment during the warrant execution. Although PO Timarchi did not recall his specific transmissions, the investigation determined that it did not include a directive to stop, or arrest § 87(2)(b) and the physical description given was vague in nature (black male).

§ 87(2)(g) According to § 87(2)(b) he stopped fully at all stop signs that he passed, and did not commit any other vehicle infractions. PO Whelan, however stated that § 87(2)(b) did not come to a full stop. PO Gove did not recall seeing § 87(2)(b) roll through a stop sign, and although § 87(2)(b) stated that she did not see § 87(2)(b) fail to stop at a stop sign, she stated that she apologized to the officers after PO Whelan explained why they stopped him. § 87(2)(g)

Police may stop an automobile and frisk its occupants when they have reasonable suspicion of criminal activity. People v. Ulerio, 781 N.Y.2d 627 (2003) (encl. 1A-C)

To ask accusatory questions, and officer must possess founded suspicion that criminality is at hand People v. Debour 40 N.Y.2d 210 (1976) (encl. 1H-R)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as *substantiated*.

Allegation D- Abuse of Authority- At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan frisked § 87(2)(b)

Allegation E- Abuse of Authority- At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan searched § 87(2)(b)

It is undisputed that PO Whelan searched § 87(2)(b)'s front fifth pocket, discovering some piece of alleged evidence that § 87(2)(b) was charged with. According to § 87(2)(b) and § 87(2)(b) PO Whelan discovered a small bag of white Vitamin C pills. According to PO Whelan and PO Gove he obtained from the search, a small clear bag containing marijuana, and a small clear bag of white pills that they determined to be Methylenedioxy Amphetamine (ecstasy).

§ 87(2)(g)

§ 87(2)(g)

According to § 87(2)(b) he was asked to step out of the vehicle and was frisked on his chest, arms, and waistband, prior to PO Whelan searching his front pocket and finding the alleged contraband. § 87(2)(b) stated that she did not see the frisk or search of § 87(2)(b) only the results of the search. According to PO Whelan, he discovered the marijuana in plainview, prior to frisking and searching § 87(2)(b) incident to arrest. According to PO Gove, § 87(2)(b) was frisked and searched incident to arrest prior to the discovery

§ 87(2)(g)

According to § 87(2)(b) and § 87(2)(b), during the frisk of § 87(2)(b) PO Whelan entered § 87(2)(b)'s pocket and pulled out the alleged contraband. PO Gove, also stated that PO Whelan's frisk and search incident to arrest revealed the contraband as he claims probable cause to arrest was previously established by PO Timarchi. According to PO Whelan, he saw a bag of marijuana sticking out of § 87(2)(b)'s front fifth pocket, in plainview. As a result, PO Whelan entered § 87(2)(b)'s pocket and obtained the marijuana and alleged ecstasy and placed § 87(2)(b) under arrest, thereby conducting a frisk and search incident to arrest.

§ 87(2)(a) 160.50

Additionally, there is no documentation of § 87(2)(b) leaving a search warrant location, or any of the initial circumstances that brought § 87(2)(b) to the officers' attention. § 87(2)(g)

§ 87(2)(g)

In order to justify a frisk, an officer must harbor reasonable suspicion that the person is armed and dangerous. Arizona v. Johnson 555 U.S. 323 (2009) (encl. BA-BH). Where a visual observation or a limited protective frisk of a subject reveals a bulge, that bulge must look or feel like a weapon before the officer is entitled to subject him to a further, more intrusive search. People v. Clark 213 A.D.2d 946 (3rd Dept. 1995) (encl. 1AY-AZ). Police may stop an automobile and frisk its occupants when they have reasonable suspicion of criminal activity. People v. Ulerio, 781 N.Y.2d 627 (2003) *supra*.

To perform a search, an officer must have probable cause that the subject committed is committing or is about to commit a crime. People v. DeBour, 40 N.Y.2d 201 (1976) *supra*. A search cannot be justified by an arrest that, but for the search, would have never taken place. People v. Reid 2014 Slip Op 08759 (Ct. App. of N.Y. 2014) (encl. 1AV-AX)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as ***substantiated***.

Allegation F- Abuse of Authority- At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Michael Whelan searched the vehicle in which § 87(2)(b) and § 87(2)(b) § 87(2)(b) were occupants.

Allegation G- Abuse of Authority- At the intersection of East 217th Street and Bronxwood Avenue, in the Bronx, PO Charles Gove searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) vehicle was searched after § 87(2)(b) was placed under arrest. Although PO Whelan does not recall the search, PO Gove stated that he and another officer searched § 87(2)(b) vehicle after § 87(2)(b)'s arrest. The scope of the search is somewhat disputed. According to § 87(2)(b) and § 87(2)(b) the trunk, and the glove compartment were searched as well as the general area of the vehicle. § 87(2)(b) also alleges that her purse located in the passenger's seat at the time of the vehicle search, was also searched. According to PO Gove, only the reachable, lungeable area of the vehicle was searched, and neither PO Gove, nor PO Whelan recall § 87(2)(b) purse being searched.

Police may search a vehicle incident to arrest if it is reasonable to believe the vehicle contains evidence of the offense of arrest. **Arizona v. Gant** 556 U.S. 332 (2009) (encl. 1S-AI) The scope of this vehicle search can extend to closed and locked containers therein. **People v. Langen** 60 N.Y.2d 170 (1983)(encl. 1AJ-AO)(see also **People v. Villavir** 160 A.D.2d 627 (1st Dept. 1990)(encl. 1AP-AR) no warrant required to search shopping bag when probable cause to believe it contained contraband related to the crime of the arrest).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **exonerated**.

Allegation H- Abuse of Authority- Inside of the 47th Precinct stationhouse, Officers questioned § 87(2)(b)

As stated in the officer identification section, the investigation was unable to identify the officers that allegedly questioned § 87(2)(b) at the stationhouse, regarding what she stated were, "people she didn't know."

The investigation therefore recommended that **Allegation H** be closed as officers unidentified.

§ 87(4-b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date